

Krishan Kumar v. U.P.P.C.L. And Another

High Court of Judicature at Allahabad · Division Bench · 8 December 2015 · WRIT - C No. - 65792 of 2015 · **Writ dismissed; petitioner relegated to Clause 6.5.**

HEADNOTE

A consumer disputing electricity bills must take the Clause 6.5 Supply Code remedy; the High Court declined to entertain the writ.

FACTUAL SUMMARY

Krishan Kumar petitioned the Allahabad High Court against electricity bills raised by U.P. Power Corporation Limited. Counsel for the Power Corporation submitted that the petitioner could take recourse to Clause 6.5 of the U.P. Electricity Supply Code, 2005. The Court accepted that that Code remedy was available, declined to entertain the writ, and dismissed the petition.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-dispute-forum

HOLDING

Where the consumer disputes bills raised by the Power Corporation, the High Court will not entertain a writ petition if the remedy under Clause 6.5 of the U.P. Electricity Supply Code, 2005 is available; the petition is dismissed with liberty to avail that remedy. ¶ 1

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 A consumer disputing electricity bills must take the Clause 6.5 Supply Code remedy; the High Court declined to entertain the writ. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE DISPUTED ELECTRICITY BILLS

The Court declined to entertain the writ and did not examine the bills. ¶ 1